

फॉर्म नं. 1
प्रथम सूचना प्रतिवेदन (धारा 154 द. प्रक्रिया संहिता के अन्तर्गत)
FIRST INFORMATION REPORT (Under Sec. 173 BNSS)

वि.पु.स्था.सी.-II
S.P.E.C.-II

बुक नं. 1448
Book No.

क्रम सं. 003
Serial No.

1.	जिला : District	थाना : PS:	वर्ष : Year	प्र.सू.प्र.क्र. FIR No.	दिनांक : Date
	Shimla	CBI, ACB, Shimla	2024	RC0962024A0009	24/11/2024
2.	(1) विधान : Act	धाराएं : Sections			
	(2) विधान : Act	धाराएं : Sections		Bhartiya Nyaya Sanhita 61(2) (BNS)	
	(3) विधान : Act	धाराएं : Sections		The Prevention of Corruption Act, 1988 (As amended in 2018)	
	(4) अन्य विधान एवं धाराएं : Other Acts & Sections			7 & 7A	
3.	(क) प्रतीत अपराध : (a) Suspected Offence			Criminal conspiracy and demand and agree to accept undue advantage by public servant and taking undue advantage to influence public servant by corrupt or illegal means or by exercise of personal influence.	
	(ख) दिन : (b) Day	दिनांक Date	समय Time		
	(ग) थाने पर सूचना प्राप्त होने का (c) Information received at PS	दिनांक Date		23.11.2024	
	CBI, ACB, Shimla	24.11.2024			
	कायमी अपराध : Entry No.	दिनांक Date	समय Time		
	11	24.11.2024	07.00 PM		
4.	सूचना का प्रकार : Type of Information	लिखित/मौखिक Written/Oral			
	Complaint				Written
5.	घटना का स्थान Place of Occurrence				
	Baddi, Distt. Solan, HP				
	(क) थाने से दिशा व दूरी : (a) Direction & Distance from PS				
	South West & About 87 KMs				

बीट नं. / Beat No.

(ख) पता: **Baddi, Distt. Solan, HP**
(b) Address

No

(ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना -
(c) In case, outside the limit of this Police Station, then

N.A.

N.A.

पुलिस थाना का नाम
Name of PS

जिला
District

6. अभियोगी / सूचनाकर्ता :
Complainant / Informant

(क) नाम
(a) Name **Sh. Ketan Kumar T Prasanna**

(ख) पिता / पति का नाम
(b) Father's / Husband's Name

(ग) जन्म तिथि
(c) Date of Birth ---

(घ) राष्ट्रियता :
(d) Nationality **Indian**

(ड) पासपोर्ट नं. जारी दिनांक जारी होने का स्थान
(e) Passport No -- Date of Issue.. Place of Issue --

(च) व्यवसाय
(f) Profession

(छ) पता - **Business (M/s Satol Chemical Unique-II)**
(g) Address

Plot No.72, Sector-1, Parwanoo, Distt. Solan, H.P.

7. ज्ञात / संदेही / अज्ञात / आरोपी का पूर्ण विवरण:

Details of known / suspected / unknown accused with full particulars

(यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)

(Attached separate sheet, if necessary)

- (1) **Sanjay Yadav, Consultant, EPF, Baddi, Distt. Solan, H.P.**
- (2) **Madan Lal Bhati, Enforcement Officer, Employees Provident Fund Organisation (EPFO), Baddi, Distt. Solan, HP.**
- (3) **And other unknown EPFO officers.**

8. अभियोगी / सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण :
Reasons for delay in reporting by the complainant / informant

No Delay

9. अपहृत / सम्बद्ध सम्पत्ति का पूर्ण विवरण : (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
Particulars of properties Stolen (Attach separate sheet, if necessary)

10. अपहृत / सम्बद्ध सम्पत्ति का कुल मूल्य :
Total value of property stolen

11. मर्ग / अकाल मृत्यु सूचना क्रमांक :
Inquest Report / U. D. case No. if any

12. प्रथम सूचना विवरण :- (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First information contents (Attach separate sheet, if required)

Sh. Ketan Kumar T Prasanna, Production Manager, M/s Satol Chemical Unique-II having registered office at Plot No.72, Sector-1, Parwanoo, Distt. Solan, H.P. has filed a complaint dated 23.11.2024 to SP, CBI, ACB, Shimla alleging demand of undue advantage of Rs.10 lakhs by the public servant Shri Madan Lal Bhati, Enforcement Officer, EPFO, Baddi, Dist. Solan, HP through consultant Shri Sanjay Yadav, Baddi for himself and also for other senior officers to settle the matter of PF demand favourably pending against M/s Satol Chemical Unique-II and if the demand is not met, the recovery would be 45-50 lakhs. The written complaint dated 23.11.2024 is enclosed as Annexure-I.

The verification of the said complaint was got conducted through Sh. Rajinder Kumar, Sub-Inspector, CBI, ACB, Shimla. During verification Sh. Sanjay Yadav, Consultant, EPF, Baddi, Distt. Solan, H.P. has demanded an amount of Rs.10 lakhs as undue advantage from the complainant on behalf of Sh. Madan Lal Bhati, Enforcement Officer, EPFO, Baddi, Distt. Solan, H.P. and other unknown EPFO officers for the said official act. The verification report dated 24.11.2024 is Annexure-II.

The above complaint and verification report dated 24.11.2024 disclose commission of offence punishable 61(2) of Bhartiya Nayaya Sanhita (BNS) 2023 and section 7 & 7A of The Prevention of Corruption Act, 1988 (As amended in July, 2018) against Shri Sanjay Yadav, Consultant, EPF, Baddi, Distt. Solan, H.P., Sh. Madan Lal Bhati, Enforcement Officer, EPFO, Baddi, Distt. Solan, H.P. and other unknown EPFO officers.

13. कार्यवाही जो की गई : चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा (ओ) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है।

Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item no. 2

- (1) मामला पंजीकृत किया गया एवं जांच प्रारम्भ हुआ अथवा
Registered the case and took up the investigation or

- (2) निर्देशित (जांच अधिकारी का नाम)
Directed (Name of IO) :

रैंक
Rank

A Regular Case has been registered.
नं. जांच हेतु लिया गया
No. Took up for investigation

Shri Govind Singh Solanki, DSP, CBI, ACB, Shimla

- (3) कारण से जांच के नामजूर
Refused investigation due to

N.A.
अथवा
or

Yes

- (4) पुलिस थाना को स्थानांतरित किया गया ^{NA}
Transferred to PS

जिला
District

क्षेत्राधिकार के आधार पर
on point of jurisdiction

अभियोगी / सूचनाकर्ता को प्र.सू. पत्र पढ़ाकर / पढ़कर सुनाया गया, जिन्होंने सही-सही अभिलिखित होना स्वाकार किया। इसकी एक प्रति अभियोगी / सूचनाकर्ता को निःशुल्क प्रदान की गई।

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया।

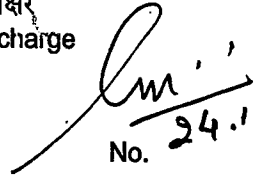
R. O. A. C.

14. अभियोगी / सूचनाकर्ता के हस्ताक्षर
Signature / Thumb impression
of the complainant/informant

थाना अधिकारी के हस्ताक्षर
Signature of Officer in-charge
Police Station

नाम / Name

(पद) / Rank


No. 24.11.24

(Rajesh Chahal)
Superintendent of Police,
CBI, ACB, Shimla.

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of despatch to the court


24.11.24

(Rajesh Chahal)
Superintendent of Police,
(प्रभारी अधिकारी के हस्ताक्षर सहित)
Signature of recording Officer with date

प्रथम सूचना रिपोर्ट का आइटम 7 लगाएं

Attachment to item 7 of First Information Report

संदिग्ध व्यक्ति की शारीरिक विशेषताएं, विरूपता तथा अन्य विवरण :-

Physical features, deformities and other details of the suspect/accused : (If known / seen)

क्र.सं. Sl. No.	*लिंग (Sex)	*जन्म की तारीख / वर्ष Date/ year of Birth	*शारीरिक गठन (Built)	*ऊंचाई से. मी. में (Height) (in Cms)	*वर्ण (Complexion)	*पहचान चिह्न (Identification Mark/s)
1	2	3	4	5	6	7

विरूपता/विलक्षणता (Deformities peculiarities)	दांत (Teeth)	बाल (Hair)	आँख (Eye)	आदतें (Habits)	पहनावा (Dress habit/s)
8	9	10	11	12	13

भाषा / बोली (Language / Dialect)	स्थान / Place of				
	जले का निशान (Burn mark)	श्वेत कुष्ठ (Leucoderma)	तिल (Mole)	जखम चिह्न (Scar)	गोदना (Tattoo)
14	15	16	17	18	19

अभियोगी / सूचनाकर्ता, द्वारा संदिग्ध / अभियुक्त के बारे में एक या अधिक विवरण दिए जाने पर ही इसमें प्रविष्टि की जाए।

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.

दिनांक : 23.11.2024

To,

The Superintendent of Police,
CBI, Anti-Corruption Branch (ACB)
Shimla.

विषय:- रिश्त मांगने के संदर्भ में शिकायत ।

महोदय,

मैं, Ketan Kumar T. Prasanna M/S Satol Chemical Unique-II, Registered Office: Plot No. 72, Sector-1 परमाणु, जिला सोलन, हिमाचल प्रदेश में Production Manager के पद पर सन 2010 से कार्यरत हूँ। M/S Satol Chemical Unique-II के Proprietor, मेरे भाई श्री Bhavesh Kumar T. Prasanna हैं, जो मुम्बई महाराष्ट्र में रहते हैं। यह फर्म Chemical Clearing Products जैसे कि Hand Wash, Liquid Soap, Floor Cleaner इत्यादि बनाती है। M/S Satol Chemical Unique-II का पूरा कामकाज मैं संभालता हूँ व इस फर्म का मैं Authorized Signatory भी हूँ। मैं वर्तमान में कंवर निवास, सैक्टर - 1, परमाणु, जिला सोलन, हिमाचल प्रदेश में रहता हूँ एवं स्थायी रूप से अहमदाबाद, गुजरात का निवासी हूँ।

महोदय, M/S Satol Chemical Unique-II को सन 2019 में Employees' Provident Fund Organisation (EPFO) बंदी, द्वारा 7A का नोटिस दिया गया व पिछले पांच सालों में मुझे इस मामले में नाहन व बंदी EPFO ऑफिस द्वारा कई बार बुलाया जा चुका है। मुझसे जब-जब, जो-जो माँगा गया मैंने सभी उचित दस्तावेज EPFO Office बंदी को समय-समय पर उपलब्ध करवाए हैं, जिसकी मुझे कभी कोई रिसीविंग नहीं दी गई। अप्रैल 2024 तक EPFO, बंदी का Additional Charge, Regional Commissioner नाहन के पास था।

Please
put up
on file.
23.11.24
PA

23/11/2024

वर्तमान में यह मामला श्री मदन लाल भाटी, Enforcement Officer (EO), EPFO, बड़ी द्वारा देखा जा रहा है। यह मामला पांच साल से लंबित है व परेशान हो कर मेरे द्वारा इस मामले को जल्द निपटाने की गुजारिश पर श्री मदन लाल भाटी, (EO), EPFO, बड़ी ने मुझे श्री संजय यादव, जो की बड़ी में एक Consultant का काम करते हैं, के माध्यम से बात/ डील कर मामले को निपटाने को कहा गया। श्री मदन लाल भाटी ने मुझे इस काम को Favorably निपटाने के लिए श्री संजय यादव Consultant बड़ी से मिलने को कहा और कहा कि उसने इस बारे में संजय यादव, Consultant बड़ी को पूरी Authority दिया हुआ है।

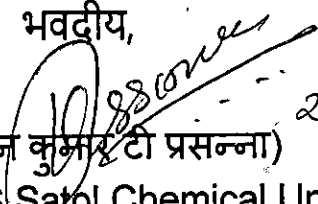
श्री मदन लाल भाटी के कहे अनुसार मैं संजय यादव, Consultant बड़ी से मिला और उसने कहा कि वह यह EFP Demand का मामला निपटवा देगा। मुझे यह भी पता है मेरे EPF Demand Case की फाईल एवं Assessment Report, EO, EPFO, बड़ी श्री मदन लाल भाटी ने संजय यादव Consultant बड़ी को Online Share भी की है, वे दोनों मिले हुए हैं। मेरे पास श्री मदन लाल भाटी द्वारा श्री संजय यादव के माध्यम से इस मामले को निपटाने की पूरी अथॉरिटी / फाइनल डील करने की छूट देने की एक ऑडियो रिकॉर्डिंग के रूप में पुख्ता सबूत भी है, जो कि मैं आइन्दा आपको पेश कर दूंगा।

दिनांक 22/11/2024 को श्री संजय यादव Consultant Baddi ने मुझे फोन किया व कहा कि Madan Lal भाटी एवं कुछ EPFO Senior Officers मेरे इस मामले को Favorably निपटाने के लिए तैयार हैं एवं वह काम उनसे करवा देगा। संजय यादव ने मामले को मेरे साथ Discuss करके पैसों की Settlement करने को कहा। संजय यादव ने फिर कहा कि उसका श्री मदन लाल भाटी एवं Senior EPFO Officers के साथ Discussion हो चुका है एवं वह 10 लाख रुपये की रिश्त में यह मामला हमारी उपरोक्त फर्म के Favour में बहुत कम PF Demand निकलवा देंगे एवं वह (संजय यादव) यह काम करवा देगा एवं साथ ही यह भी कहा कि ऐसा न करने पर PF Recovery की Demand बहुत High i.e. 45-50 Lacs रुपये निकलवा दी जाएगी। श्री संजय यादव ने मुझे इस मामले की चर्चा के लिए आज दिनांक 23.11.2024 को बड़ी बुलाया है।

मेरी या फर्म के किसी भी कर्मचारी का श्री मदन लाल भाटी व श्री संजय यादव या किसी भी EPFO अधिकारी/ कर्मचारी के साथ कोई व्यक्तिगत दुश्मनी नहीं है और ना ही कोई निजी या वित्तीय लेन-देन है एवं मैं श्री मदन लाल भाटी या श्री संजय यादव या उनके द्वारा बताए गए किसी अन्य को रिश्तत की कोई राशि नहीं देना चाहता हूँ ।

अतः आपसे अनुरोध है की श्री मदन लाल भाटी व श्री संजय यादव के खिलाफ आवश्यक कानूनी कार्यवाही करें । M/S Satol Chemical Unique-II की तरफ से शिकायत करने के लिए मैं अधिकृत हूँ

धन्यवाद।

भवदीय,

(केतन कुमार टी प्रसन्ना) 23/11/2024
M/S Satol Chemical Unique-II

Dated: 24.11.2024

VERIFICATION REPORT

On the direction of the Head of Branch, CBI, ACB, Shimla, HP, the undersigned proceeded to Baddi in Govt. vehicle, wherein, Shri Arjun Singh, Asst. Engineer, CPWD, Shimla, HP accompanied with undersigned. Upon reaching Baddi, as directed by the Head of Branch, the undersigned contacted Shri Ketankumar T. Prasanna, who submitted a written complaint dated 23.11.2024, wherein, he mentioned that he is the Production Manager, M/s Satol Chemical Unique-II having registered office at Plot No. 72, Sector-1, Parwanoo, Dist. Solan, HP addressed to the Supdt. of Police, CBI, ACB, Shimla, HP alleging demand of undue advantage of Rs.10 lakhs by the public servant Shri Madan Lal Bhati, Enforcement Officer, EPFO, Baddi, Dist. Solan, HP through consultant Shri Sanjay Yadav, Baddi for himself and also for other senior officers. The said fact was apprised to the Head of Branch, who directed me to verify and report. However, as directed the said complaint was sent to the Head of Branch through the drive, which was marked to the undersigned by the Head of Branch, CBI, ACB, Shimla, HP to verify and report.

It is alleged in the complaint by Shri Ketankumar T. Prasana that M/s Satol Chemical Unique-II is a proprietary firm, wherein, he is working as Production Manager. The proprietor of the firm is his elder brother Sh. Bhaveshkumar T. Prasanna. He further informed that he is managing day to day work and is also authorised signatory of the firm.

It is further alleged in the complaint that M/s Satol Chemical Unique-II received a notice of 7A from EPFO, Baddi, Solan, HP and since he has been visiting offices of EPFO, Baddi and Nahan, HP. It is pertinent to mention that earlier for sometime till April, 2024, the charge of EPFO, Baddi was with Regional Commissioner, Nahan, hence was required to visit the office of EPFO, Nahan too. The complainant Shri Ketankumar T. Prasana has stated that he has been providing required documents to the EPFO time to time as demanded. However, no receiving for providing the documents have ever been given to him.

The complainant has further alleged that presently the enquiry related to M/s Satol Chemical Unique-II is with Shri Madan Lal Bhati, Enforcement Officer, EPFO, Baddi, Solan, HP. Being upset with such long pending enquiry, the complainant Shri Ketankumar T. Prasana requested Shri Madan Lal Bhati to conclude the enquiry soon and he is ready to provide all the necessary required documents. Shri Madan Lal Bhati at that point asked the complainant to contact Shri Sanjay Yadav, a consultant for settling the enquiry. Shri Madan Lal Bhati also

24/11/24

24/11/2024

24/11/24

said that he has fully authorised Shri Sanjay Yadav to deal in this matter to settle the ongoing enquiry. The complainant has also mentioned that he is having audio recording as proof in this regard.

The complainant has further alleged that he received a call from Shri Sanjay Yadav on 22.11.2024, wherein, he demanded undue advantage of Rs.10 lakhs on behalf of Shri Madan Lal Bhati and other public servants to settle the matter of PF demand favourably pending against M/s Satol Chemical Unique-II. It has also been intimidated that if the demand is not met the recovery would be 45-50 lakhs. Shri Sanjay Yadav has called the complainant on 23.11.2024 to discuss the matter.

The complainant Shri Ketankumar T. Prasana has mentioned that neither he nor any of his staff have any enmity or financial dealing with Shri Madan Lal Bhati or Shri Sanjay Yadav or any of the EPFO officers/ official. The complainant Shri Ketankumar T. Prasana has stated that he is not inclined to pay any undue advantage to anyone and he is authorised to file complaint on behalf of that M/s Satol Chemical Unique-II. Thus, has requested to take appropriate legal action against Shri Madan Lal Bhati, Shri Sanjay Yadav and others.

Thereafter, the undersigend discussed the matter in detail with the complainant and after having satisfied with the contents as mentioned in the complaint, it was decided to verify the genuineness of the demand as alleged in the complaint. At this point of time the presence of independent witness, deputed by CPWD, Shimla, HP, namely Shri Arjun Singh, Asst. Engineer, CPWD, Shimla, HP who was already available on the spot was involved in the proceedings. The complainant was introduced with the independent witness named as above and vice versa. The independent witness voluntarily agreed to associate with undersigned for the ongoing proceedings.

In order to take further action into the matter, the general reputation of suspects Shri Madan Lal Bhati and Shri Sanjay Yadav was discreetly verified and it was found that Shri Madan Lal Bhati was reportedly found corrupt public servant and usually demand undue advantage through consultant Shri Sanjay Yadav. After satisfying with the bad reputation of the officer, it was decided to verify the demand of bribe as mentioned by the complainant Shri Ketankumar T. Prasanna.

As the suspect Shri Sanjay Yadav has called the complainant Shri Ketankumar T. Prasana to discuss the matter on 23.11.2024, it was decided to send the complainant with Digital Voice Recorder to the office of suspect consultant Shri Sanjay Yadav located at Baddi to further verify specific demand of undue advantage on the part of Shri Madan Lal Bhati and any others and to record

24/11/24

24/11/2024

24/11/24

the conversation to be held between the complainant Shri Ketankumar T. Prasana and suspect consultant Shri Sanjay Yadav.

Thus, in furtherance to verify the complaint, a DVR having SD memory card slot was used. The function of DVR was shown to both the complainant and witness. It was found that the memory card slot was blank and the independent witness confirmed its emptiness. Thereafter, a new company sealed **memory card of Adata make of 32 GB** was brought and company seal of memory card was broken and it was inserted into the said digital recorder in the presence of above mentioned independent witness. The said digital recorded was played and on the screen of the digital recorder "No File" appeared confirming that there was no recording available in this memory card. However, inadvertently a blank file was created while explaining bearing file name "241123_1159".

The DVR was then switched on and was placed on the in the front upper pocket of the complaint jacket in on mode in order to record the ensuing conversation to be held between the complainant Shri Ketankumar T. Prasana and suspect consultant Shri Sanjay Yadav. The complainant Shri Ketankumar T. Prasana was instructed not to offer bribe and let the suspect demand the bribe. He was also instructed to come back straight to him without disturbing/ touching the DVR. The complaint left on his scoter and the undersigned and independent witness Sh. Arjun Singh followed in Govt. Vehicle keeping a safe distance.

The complainant after reaching the spot, i.e., M/s RS Consultant located Baddi, entered the office of Shri Sanjay Yadav, which was in the vision of undersigned. The complainant came out after some time. The DVR was stopped and the file created was bearing file name "241123_1209".

Upon enquiring, it was informed by the complainant that the suspect was not available in office. Thereafter, the complainant made a called to the suspect Shri Sanjay Yadav on his mobile number 9816090530, who asked the complainant to come to a new location, i.e., at a factory namely Dharmo Care Lab Pvt. Ltd. near Barotiwala Chowk.

Thereafter, the complainant Shri Ketankumar T. Prasana, further on direction, proceeded on his Scoter followed by undersigned along with independent witness to the new location, i.e., Barotiwala Chowk. The complainant stopped at a safe distance, as instructed, from the decided new location. The DVR was again switched on and was kept in the upper left hand side jacket pocket. Thereafter, the complainant proceeded on his scoter at the Dharmo Care Lab Pvt. Ltd.

24/11/24

Scorer
24/11/2024

24/11/24

The complainant came back after about 1 hours 45 minutes. The DVR was stopped and the file created was bearing file name "241123_1245". Further, on enquiry, it was informed by the complainant that upon reaching place, suspect Sh. Sanjay Yadav was found available in the factory. Further, on discussing the issue, in the instant matter, it was informed by the suspect Sh. Sanjay Yadav that Rs.5 lakhs are to be given to Regional Commissioner, Baddi and Shimla. The bifurcation of the amount with respect to Regional Commissioner, Baddi and Shimla was not disclosed by the suspect Sh. Sanjay Yadav. Sh. Sanjay Yadav further told that Rs.2 lakhs is demanded by Sh. Madan Lal Bhati, EO, EPFO, Baddi. Further, Rs.1 lakh is to be given to Sh. Hansraj Naeen the then Regional Commissioner, Nahan, who was holding the addition charge of Regional Commissioner, Baddi for sometime till April, 2024. Further, the suspect Sh. Sanjay Yadav demanded Rs.2 lakhs as his own share for facilitating the complainant. In this regard, the suspect also explained in writing on a plane sheet, which was taken into police possession and attached with this verification report. Thus, in totality Rs.10 lakhs was demanded as undue advantage. The recording bearing file name "241123_1245" was heard in presence of all and it was found in consonance with the version of the complainant. The relevant part of the transcription is as below.

संजय यादव -आपको एक दिन attend करना पड़ेगा ।

केतन पटेल - आप जिस दिन बोलो मैं आ जाऊंगा ।

संजय यादव - जरूरत नहीं है । आप यह बताईए जो deposit करना है । कितना कर सकते हैं । जो आपने message दिया या उसके ले मना कर रहे हैं

केतन पटेल- बड़े भाई हो आप निकल रहे हैं सरकारी, हमने कहा यह नहीं करना, बताऊंगा उसका क्या निकलेगा ये लेकर आओ वो लेकर आ रिजल्ट क्या निकलेगा ।

केतन पटेल - 5 लाख रुपए मेरा निकल गया

संजय यादव- Inspection करवा दिया है । finish नहीं हुआ final touch था इसको Close कर दो। Deposit के बाद पैसो के पार्ट पर क्या रहेगा । हर एक आदमी अलग 2-बोलता है मुझे यह चाहिए एक लाख उसे चाहिए मुंह बन्द कर लेगा वो भी उसको टच कर रहा है ।

केतन पटेल- मैंने तो सब आप पर छोड़ है । आप मेरे बड़े भाई हो आप मुझे बताओ किसको क्या देना है और क्या deposit करना तुम मेरी

संजय यादव- Deposit का रखो लगभग एक लाख, कुछ भी होगा भी interest लगेगा 3 लाख ब्याज से उपर नहीं जाएगा । यह कम से कम निकालना ही पड़ेगा इतने सालों का है । निकालना ही पड़ेगा

संजय यादव -एक लाख deposit करना पड़ेगा उसके बाद interest आएगा।

केतन 1.5 -जमा करवाना ही पड़ेगा ।

यह तो ज्यादा नहीं इसके बाद interest आएगा ज्यादा नहीं आएगा

संजय यादव -यह.. लीन नहीं करना नहीं करना मैंने कि पैसा बड़ जाएगा।

24/11/24

24/11/2024

24/11/24

केतन पटेल -इसमे penalty भी आएगी।

संजय यादव -नहीं नहीं 50000 रुपए का खर्चा सरकारी होगा वो तो

केतन पटेल -वहां आपको यह समझो लो मोटा 2 2-लाख रुपए 1.50 भरना है 1 ओर 2 लाख रुपए । मैं ऑनलाईन बैंकिंग से भर सकता हूँ ।

संजय यादव -मैं लिंक दे दूंगा ।

केतन पटेल -या तो मैं लैपटॉप लेकर आ जाऊंगा ।

संजय यादव -हो जाएगा ।

केतन पटेल -बाम्बे बैठती है ना मैडम से करवा दूंगा ।

चलो यह बात आपने जो बाला अब इस बात पे आ जाओ चलो कैस किसको कितना क्या 2-देना क्या खर्चा है संजय यादव -बड़े साहब व छोटे साहब मिलाकर के बड़े साहब शिमला वाले 5 बोल रहे हैं कि 5 से नीचे मैं नहीं लूंगा ।

केतन पटेल - इसमे कुछ करवा दो

संजय यादव 2 -जो है 1.5 से दो भट्टी और नाम साफ नहीं है ।

केतन पटेल -भट्टी और बांबू -बांबू बोल रहे थे ।

संजय यादव -एक उसको देना पड़ेगा थोड़ा सा confidential नहीं आएगा

पुराना रिकार्ड नाम करवा देगा । दिल्ली दिल्ली में हमारे लिए मुशिकल होती है ।

केतन पटेल -एक लाख जिसको हम चाहते मिलने गए थे । 8 लाख रुपए हो गए इसमें आप क्या करवा सकते हो। संजय भाई देखो इसमें मैं संजय यादव -कुछ नहीं करवा सकता

केतन पटेल -आप मेरी बात सुनो 5 लाख रुपए बड़े साहब छोटे साहब हो गया शिमला और दो लाख तो भाटी साहब ,भाटी साहब ने एक बोला था

संजय यादव -एक बोला था ना 1.5 तो मैं दे चुका हूँ 1.5 तो दे चुका तो

केतन पटेल-- तो आप 1.5 दे चुके हो ।

संजय यादव -नहीं पर यह तो हमारा काम है अगर आप मना करेगे

केतन पटेल - हम मना मुझको करवाना ही भाई

संजय यादव -यह देखिए वैसे ही क्या देता हूँ। आपको नुकसान नहीं है फायदा ही है।

संजय यादव -मैंने एक वर्ड बोला था यह आपका हो जाएगा यह काम हमारे through होता न यह हमने 5 के नीचे 2 निपटा देना था ।

केतन पटेल -आप कर सकते हैं तभी तो आपके पास आया कुछ करवा सकते हो तो।

संजय यादव -सुनो तो मेरे हाथ में कुछ नहीं है यह लोग ऐसे ही बोल रहा है दो तीन कडीशन में लगाया ,एक तो मेरे पास फोन नहीं आना चाहिए तुम मेरे को पैसे नहीं देगा ,तुम चैक देगा अपना हमारा बन्दा जाएगा चपड़ासी वही पैसा निकाल कर देगा। हम आपका पैसा नहीं रखेगा। यह सब कडीशन है हम केवल आपको शेयर कर रहा हूँ।

केतन पटेल -आप उसे चैक दोगे उसका बन्दा निकाल के ऐसा क्यों

संजय यादव -सर एक थोड़ा सा लग गया न आपके उपर-

केतन पटेल -मुझे कोई लेना देना नहीं मेरा थोड़ा से है न 8 लाख रुपए 8 लाख को थोड़ा से करवाओ भाई के नाते करवाओ

केतन पटेल -यह तो 13 लाख हो गया

मेरी बात सुनो मैं किसी के अकाउंट में पैसा ट्रांसफर कर दूँ और कैश provide करवा दे मेरे पास इतना कैश नहीं है कैश क्या किया जाए 4 से 5 लाख कैश का इन्तजाम तो है 2/3 लाख Short पड़ेगा कैसे किया जाए इस मसले का हल किया जाए ।

संजय यादव -और मेरा क्या करेगा मैं केतन ऐसे काम को पकड़ता नहीं हूँ और पकड़ता हूँ तो अपना पैसा लेता हूँ ।

केतन पटेल -सर आप बोलो आप का ...बड़े भाई

पांच लाख कैश arrange कर सकता हूँ या किसी के अकाउंट में ... आप withdraw करव लेना । आपके तो मैं Account में भी दे सकता हूँ । आपको तो मैं सैल्फ का चेक भी दे सकता हूँ साहब लोगो को तो पहले देना पड़ेगा ।

मैं आपको इधर-उधर से करके पांच दे सकता हूँ तीन का कैसे करेगे । कोई जुगाँड़ बता दो ।

संजय यादव -कोई न हो जाएगा । मैं अपने बन्दे का नम्बर दे दूँगा बैंक डिटेल ।

केतन पटेल -उसमें डलवा दूँगा ।

केतन पटेल - आप अपना बताओ ।

संजय यादव -यह चीज फोन पर नहीं बोल सकता ।

केतन पटेल- क्यूं मार रहे हो 13.... 3 ... 10 पड़ेगा । 8 ऊपर वाले साहबों का 2 लाख भाटी साहब 1, नाहन वाले साहब 2 लाख तुम्हारा और लाख मतलब यह 2 से 1.5

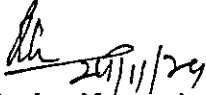
Thereafter, the undersigned along with the complainant and independent witness left and reached CBI office, Shimla. It is pertinent to mention that the recording also disclosed that complainant told the suspect Sh. Sanjay Yadav that he will make his brother to speak to Sh. Sanjay Yadav with respect to finalizing the deal. Further, in this regard, a call was also received from Sh. Sanjay Yadav, however, the same was not picked up as the recorder was not in ready position to recording the conversation. Thereafter, the suspect Sh. Sanjay Yadav was called back on his mobile number 9816090530 keeping the mobile phone on speaker mode and the conversation was recorded in presence of all concern. The suspect Sh. Sanjay Yadav enquired that the complainant has not made his brother to speak to him regarding the finalization of the deal and told the complainant to close the deal soon, upon this complainant assured to complete it on Monday, i.e, 25.11.2024. At this point of time, it was decided not to seal the memory card and to hand over the DVR to the complainant so as, in case, any further call is received by him, the same could be recorded. He was explained the function for operating the same with direction to report to reach CBI office, Shimla on 24.11.2024 with the DVR. He was specifically directed to not use the DVR otherwise.

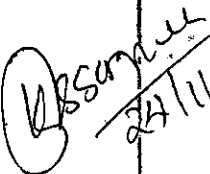
The complainant reached the CBI office, Shimla on 24.11.2024 and informed that no call was received from any of the suspect. He also informed that the DVR was also not used.

At this point of time, the recording available in the memory card was copied on the laptop for investigation purpose. Then, the memory card was taken out of the Digital Voice Recorder. The memory card was then marked as 'MC-1'. The memory card marked as 'MC-1' was placed in its cover. The memory card cover is now placed in an envelope and then sealed with wax by using CBI Brass Seal bearing no. 'CBI Shimla (HP)-35'. Thereafter, the undersigned as well as complainant, Shri Ketankumar T. Prasana and the above mentioned independent witness Shri Arjun Singh appended their signatures on the sealed envelope in which the memory card, marked as 'MC-1', has been wrapped and sealed. The specimen impressions of the brass seal used for sealing envelope was taken on the separate paper sheets in ink and wax. The verification proceedings which started on 23.11.2024 and concluded at on 24.11.2024.

The transcript of the conversation held between the complainant Shri Ketankumar T. Prasana and suspect Sh. Sanjay Yadav clearly indicates that he has been demanding an illegal gratification from Shri Ketankumar T. Prasana on behalf of Sh. Madan Lal Bhati, EO, EPFO, Baddi, Solan, HP and other unknown EPFO officers. This act of the suspect Sh. Sanjay Yadav, Consultant and Sh. Madan Lal Bhati, EO, EPFO, Baddi, Solan, HP constitutes commission of office punishable U/sec. 61 (2) BNS r/w sections 7 & 7A of the PC Act 1988 (as amended in 2018). Therefore, a Regular Case is recommended to be registered against said Sh. Sanjay Yadav, Consultant (private person) and Sh. Madan Lal Bhati, EO, EPFO, Baddi, Solan, HP (public servant) and other unknown EPFO officers U/sec.61 (2) BNS r/w sections 7 & 7A of the PC Act 1988 (as amended in 2018).

Submitted for kind perusal and further necessary action please.


(Rajinder Kumar)
SI, CBI, ACB, Shimla


24/11/2024


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Confidential/Registered

No. 815 to 821 / RC0962024A0009 / CBI / Shimla

Dated: 24/11/2024

Copy for favour of information is forwarded to:-

1. The Ld. Special Judge, CBI Shimla, H.P.
2. The Joint Director/Head of Zone, CBI Chandigarh.
3. The Chief Vigilance Officer, EPFO, R.K. Puram, New Delhi.
4. Sh Govind Singh Solanki, DSP, CBI ACB Shimla (Investigation officer).
5. Sh. Ketan Kumar T. Prasanna, Production Manager, M/s Satol Chemical Unique-II, Plot No.72, Sector-1, Parwanoo, Distt. Solan, H.P. (Complainant).
6. Crime File.
7. Guard File.

O/c